



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
DATE: 3/27/2026
BY: **JILINA B. JUTILO**
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 33RD REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON MARCH 17, 2026

PRESENT:

Hon. Jane V. Plaza Municipal Vice- Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Michael C. Escuyos		SB Member

ON OFFICIAL BUSINESS:

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ORDINANCE NO. 33
Series of 2026

“AN ORDINANCE DECLARING, REGULATING, AND PROVIDING FOR THE ABATEMENT OF NUISANCE WITHIN THE MUNICIPALITY OF CARMEN, SURIGAO DEL SUR AND PROVIDING PENALTIES THEREFOR, AND FOR OTHER PURPOSES”

Author: Hon. Michael C. Escuyos
Enacted: All Members Present

EXPLANATORY NOTE

Everyone has the right to live in a clean, peaceful and healthy community. However, problems like loud noise, garbage accumulation, blocked streets and unsafe buildings have been affecting the health and comfort of our residents in the Municipality of Carmen, Surigao del Sur.

This Ordinance aims to help the Municipal Government stop and remove such nuisances. It clearly states what kinds of acts or conditions are considered a nuisance, who will enforce the law and what penalties will be imposed on violators.

Through this Ordinance, the municipality can better protect the community from health risks and maintain cleanliness, order and safety for all.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

Section 1. TITLE- This Ordinance shall be known as the “NUISANCE ABATEMENT ORDINANCE OF THE MUNICIPALITY OF CARMEN, SURIGAO DEL SUR.”

Section 2. DECLARATION OF POLICY- It is hereby declared the policy of the Municipality of Carmen, Surigao del Sur to eliminate or abate all forms of nuisance within its territorial jurisdiction to protect public health, safety, order and convenience.

Section 3. DEFINITION OF TERMS- For purposes of this Ordinance, the following terms shall mean:

- a. Nuisance- any act, omission, establishment, condition of property, or anything else which:
 - 1) Injures or endangers the health or safety of others.
 - 2) Annoys or offends the senses.
 - 3) Shocks, defies, or disregards decency or morality.
 - 4) Obstructs or interferes with the free passage of any public street, highway, or body of water.
 - 5) Hinders or impairs the use of property.
- b. Public Nuisance- affects a community or neighborhood or any considerable number of persons.
- c. Private Nuisance- affects only an individual or a few persons.

Section 4. PROHIBITED ACTS- The following acts, omissions, or conditions are hereby declared nuisances per se and are prohibited:

- 1) The operation of any business or trade emitting foul odor, smoke, noise, or other pollutants offensive to the senses.
- 2) The dumping or accumulation of garbage, refuse, waste materials or stagnant water on public or private property.
- 3) The obstruction of public streets, alleys, sidewalks or waterways.
- 4) The construction or maintenance of structures endangering public safety or health.
- 5) The keeping of animals in a manner offensive to the community or injurious to health.
- 6) The operation of excessively noisy establishments, including karaoke or videoke beyond regulated hours.
- 7) Any other similar acts declared by competent authority as nuisance.

Section 5. ABATEMENT OF NUISANCE- The following are the abatement of nuisances:

- a. Upon verification and investigation by the Municipal Engineer, Municipal Health Officer or any authorized Officer, any nuisance shall be ordered abated or removed within a period of ten (10) days from notice.
- b. If the owner or responsible person fails to comply within the period prescribed, the municipality shall summarily abate or remove the nuisance at the expenses of the violator, without prejudice to the filing of appropriate charges.

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Section 6. PENALTIES- Any person, natural or juridical, found violating the provisions of this Ordinance shall be penalized as follows:

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| First Offense | - A fine of Five Hundred Pesos (Php500.00) and written warning |
| Second Offense | - A fine of One Thousand Pesos (Php1,000.00) or community service of not less than five (5) days |
| Third and Succeeding Offenses | - A fine of Two Thousand Five Hundred Pesos (Php2,500.000) and/or imprisonment of not more than thirty (30) days, at the discretion of the court |

Section 7. IMPLEMENTING AGENCIES- The Office of the Municipal Mayor, through the Municipal Engineer, Municipal Health Officer, Municipal Environment and Natural Resources Officer and the Barangay Officials shall be responsible for the enforcement and implementation of this Ordinance.

Section 8. SEPARABILITY CLAUSE- If any section or provision of this Ordinance is declared unconstitutional or invalid, the other sections not affected thereby shall remain in full force and effect.

Section 9. REPEALING CLAUSE- All ordinances, rules, or regulations inconsistent with this Ordinance are hereby repealed or modified accordingly.

Section 10. EFFECTIVITY- This Ordinance shall take effect fifteen (15) days after its approval.

ENACTED this 17th day of March, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


JANE V. PLAZA
Municipal Vice- Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor
3-27-2026